

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 14-16

BALTIC AUTO SHIPPING, INC.,

Complainant,

– vs. –

**MICHAEL HITRINOV
a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC.,**

Respondents.

**COMPLAINANT’S MOTION FOR AN EXTENSION OF THE BRIEFING SCHEDULE
FOR RESPONDENTS’ MOTION FOR PARTIAL SUMMARY DECISION**

Pursuant to Rules 69 and 71 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainant, through its Counsel, Marcus A. Nussbaum, Esq. respectfully submits this brief in support of its motion seeking an extension of the briefing schedule for respondents’ Motion for Partial Summary Decision.

As the Commission may recall, I am the attorney for the Complainant in the above captioned matter. On March 13, 2015, the Commission issued an amended briefing schedule, a copy of which is annexed hereto as **Exhibit “A”**, which ordered as follows:

March 23, 2015	Respondents will file a motion for partial summary decision on (1) the effect of the statute of limitations; and (2) the effect of the settlement resolving the 2011 New Jersey case between the parties. <i>Baltic Auto Shipping, Inc. v. Michael Hitrinov a/k/a Michael Khitrinov, Empire United Lines Co., Inc., et al.</i> , No. 2:11-cv-06908-FSH (D.N.J. Dec. 7, 2011) (Stipulation and Dismissal). The motion will be accompanied by a statement of material facts as to which there is no genuine dispute and necessary supporting documentation.
April 20, 2015	Complainant will file its response to the motion for partial summary decision.

May 4, 2015 Respondents may file a reply to Complainant's response.

As the Commission may also recall, the Commission signed a subpoena directing the Mediterranean Shipping Company (“MSC”) to produce various documents requested in the subpoena within 20 days of the service. The subpoena was served upon MSC on March 24, 2015 (a copy of the Affidavit of Service is annexed hereto as **Exhibit “B”**), and pursuant to the Commission’s directive, a response was due ***no later than April 16, 2015***.

On April 9, 2015, MSC provided various documentation in response to the subpoena, and on April 14, 2015, the undersigned advised MSC that their response was incomplete. Copies of the emails to that effect are annexed hereto as **Exhibit “C”**. In response thereto, MSC requested an extension until Friday, April 17, 2015 in order to complete their disclosure (See **Exhibit “C”**).

On April 14, 2015, the undersigned advised MSC that an extension would be granted until Thursday, April 16, 2015, in light of the fact that complainant’s opposition papers for respondents’ motion are due on April 20, 2015. A copy of the email to that effect is annexed hereto as **Exhibit “D”**. To date, MSC has not completed its disclosure.

The undersigned needs these documents, as they will be used as part of complainant's brief in opposition. I have consulted with counsel for the respondents regarding the following proposed dates:

- April 27, 2015 for the complainant's opposition papers;
- May 11, 2015 for respondents' reply brief.

Counsel for the respondents has advised that he would consult with his client prior to consenting to the extension, however, out of an overabundance of caution, the undersigned makes this motion in order to address this issue before it is too late.

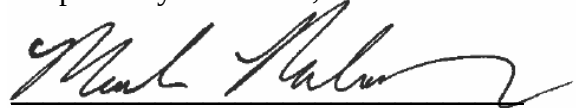
It is therefore respectfully requested that the Commission now amend the briefing schedule in order to allow for the undersigned to resolve the issue of the incomplete disclosure with MSC.

CONCLUSION

Accordingly, for the reasons set forth above, complainant requests that the instant motion be granted in its entirety.

Dated: April 17, 2015
Brooklyn, NY

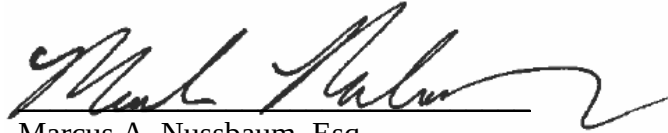
Respectfully Submitted,

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainant
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANT'S MOTION FOR AN EXTENSION OF THE BRIEFING SCHEDULE FOR RESPONDENTS' MOTION FOR PARTIAL SUMMARY DECISION** upon Respondents' Counsel, The Law Office of Doyle & Doyle, with the address of 636 Morris Turnpike, Short Hills, NJ 07078 by first class mail, postage prepaid, and by email (gdoyle@doyelaw.net).

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', with a long, sweeping horizontal line extending to the right.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainant
marcus.nussbaum@gmail.com

Dated: April 17, 2015 in Brooklyn, New York.

Exhibit “A”

S	E	R	V	E	D
March 13, 2015					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-16

BALTIC AUTO SHIPPING, INC.

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV, and
EMPIRE UNITED LINES CO., INC.**

**MARCH 13, 2015, ORDER ON RESPONDENTS' MOTION AND
AMENDED BRIEFING SCHEDULE**

On March 12, 2015, the parties appeared for a telephone conference on Respondents' Motion Requesting a Discovery Dispute Conference and for an Extension of Time to File Motion for Partial Summary Decision. At the conference, Complainant was represented by attorney Marcus A. Nussbaum and Respondents were represented by attorney Gerald Doyle. The conference was recorded by audio, but no transcript was made of the recording. The parties have been supplied with electronic copies of the recording. It is hereby

ORDERED that Respondents' Motion Requesting a Discovery Dispute Conference and for an Extension of Time to File Motion for Partial Summary Decision be **GRANTED IN PART** and **DENIED IN PART**. Respondents' motion for a telephone conference is **GRANTED**. Respondents' motion for an order requiring Complainant to produce the documents listed in the attachment to the motion is **DENIED**.

Based on the parties' discussions, the following schedule is entered:

March 23, 2015	Respondents will file a motion for partial summary decision on (1) the effect of the statute of limitations; and (2) the effect of the settlement resolving the 2011 New Jersey case between the parties. <i>Baltic Auto Shipping, Inc. v. Michael Hitrinov a/k/a Michael Khitrinov, Empire United Lines Co., Inc., et al.</i> , No. 2:11-cv-06908-FSH (D.N.J. Dec. 7, 2011) (Stipulation and
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Dismissal). The motion will be accompanied by a statement of material facts as to which there is no genuine dispute and necessary supporting documentation.

April 20, 2015 Complainant will file its response to the motion for partial summary decision.

May 4, 2015 Respondents may file a reply to Complainant's response.

Complainant will endeavor to produce in Microsoft Excel format Attachment H to the audit previously produced in PDF format.



Clay G. Guthridge
Administrative Law Judge

Exhibit “B”

AFFIDAVIT OF SERVICE

State of

County of

Court

Case Number: 14-16

Complainant:

BALTIC AUTO SHIPPING, INC.

vs.

Respondents:

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV, EMPIRE UNITED
LINES CO., INC.**

For:

Marcus Nussbaum

P.O. Box 7042

New York, NY 10116



DCS2015001846

Received by Delta Court Service on the 23rd day of March, 2015 at 3:41 pm to be served on **MEDITERRANEAN SHIPPING COMPANY (USA) INC., 420 5TH AVENUE, 8TH FLOOR, NEW YORK, NY 10018.**

I, Robert Hill, Process Server, being duly sworn, depose and say that on the **24th day of March, 2015 at 12:30 pm,** I:

served a **CORPORATION** by delivering a true copy of the **SUBPOENA DUCES TECUM TO RAFFAEL ZISSU** as **AUTHORIZED AGENT** for **MEDITERRANEAN SHIPPING COMPANY (USA) INC.,** at the address of: **420 5TH AVENUE, 8TH FLOOR, NEW YORK, NY 10018,** and informed said person of the contents therein, in compliance with state statutes.

Description of Person Served: Age: 60, Sex: M, Race/Skin Color: White, Height: 5'9", Weight: 160, Hair: Gray-Balding, Glasses: Y

I certify that I am over the age of 18, have no interest in the above action, and am a Certified Process Server, in good standing, in the judicial circuit in which the process was served.

State of New York, County of Queens ss:
Subscribed and Sworn to before me on the 25th day
of March, 2015 by the affiant who is
personally known to me.

Lauren A. Vasil
NOTARY PUBLIC

LAUREN A. VASIL
Notary Public, State of New York
01VA61-0015
Qualified in Nassau County
Commission Expires May, 29 2016

Robert Hill

Robert Hill, Process Server
License# 1252774

Delta Court Service
87-67 148th Street
2nd floor
Jamaica, NY 11435
(718) 739-3020

Our Job Serial Number: DCS-2015001846



Exhibit “C”

Marcus A. Nussbaum

From: M PANTOSIN USNYC CLAIMS ASST MGR <mpantosin@msc.us>
Sent: Tuesday, April 14, 2015 1:50 PM
To: Marcus A. Nussbaum, Esq.
Subject: RE: SUBPOENA DUCES TECUM/ exhibit A proof

Good day

Dear Marcus

I am currently checking with the appropriate party in order to get all documents below requested, I want to kindly ask you the possibility to present to you by Friday.

Please let me know

Thank you.

---Written strictly without prejudice and without admission of liability---

Best regards

Maria Jose Pantosin

Cargo Claims

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

for the real world

420 Fifth Avenue, 10018, New York, USA

T: +1 212 764 4800 ext: 33312 D: +1 212 827 1646 W: www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

Visit our eCommerce website: <https://link.msc.net>

Please take a moment to let us know how we have served you. Please [click here](#) or email customerservicefeedback@msc.us

From: Marcus A. Nussbaum, Esq. [mailto:marcus.nussbaum@gmail.com]

Sent: Tuesday, April 14, 2015 12:08 PM

To: M PANTOSIN USNYC CLAIMS ASST MGR

Subject: RE: SUBPOENA DUCES TECUM/ exhibit A proof

Dear Maria,

I have reviewed MSC's response to the subpoena that was served upon MSC pertaining to the matter currently before the Federal Maritime Commission, in the matter of Baltic Auto Shipping Inc. v. Empire United Lines Co. Inc. et al, docket number 14-16.

Please be advised that MSC's response to the subpoena is deficient for the following reasons:

1. Exhibit "A" to the subpoena contains 28 bookings and MSC has not provided ocean liner bills of lading, telex releases, and correspondence from Empire regarding "hold" instructions, telex release instructions, and/or other written instructions sent to MSC from Empire and/or Michael Hitrinov for these bookings.

2. MSC has failed to produce any of the subpoenaed documents for more than half of the booking numbers in Exhibit "A", and specifically with respect to MSC's claim that no Telex releases are available in response to the subpoena, I am hereby requesting that you re-check your records and produce the Telex releases within 24 hours of this email.

3. MSC's response to Exhibit "B" of the subpoena is also deficient, as MSC did not provide correspondence from Empire regarding "hold" instructions, telex release instructions, and/or other written instructions sent to MSC from Empire and/or Michael Hitrinov for these bookings, as well as the correspondence which contains instructions from Empire regarding whether or not the telex releases should state "collect charges" or "freight prepaid". If MSC is taking the position that these instructions were not given in writing, and were made by phone, please provide a sworn affidavit to that effect. To the extent that bills of lading are provided by your office in response to the subpoena, please confirm that these are copies of the original bills of lading maintained on file in your office.

Pursuant to 46 CFR 515.33, MSC is required to keep these documents on file for a period of five years. If MSC has failed to comply with the subpoena and the record keeping requirements, it may possibly subject MSC to monetary fines and/or other disciplinary action by the Commission.

I look forward to your response.

***** Please note that my mailing address has changed *****

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
<http://www.nussbaumlawfirm.com/>

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From: M PANTOSIN USNYC CLAIMS ASST MGR [<mailto:mpantosin@msc.us>]

Sent: Thursday, April 09, 2015 5:06 PM

To: marcus.nussbaum@gmail.com

Subject: SUBPOENA DUCES TECUM/ exhibit A proof

Good day

Dear Mr. Nussbaum

In order to comply with the subpoena please find attach all the bill of ladings requested on Exhibit A. Please also note that there is no copy of the Telex available since shipments are from the past years.

Please let me know if any additional documents are needed

Thank you

---Written strictly without prejudice and without admission of liability---

Best regards

Maria Jose Pantosin

Cargo Claims

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
for the real world

420 Fifth Avenue, 10018, New York, USA

T: +1 212 764 4800 ext: 33312 D: +1 212 827 1646 W: www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

Visit our eCommerce website: <https://link.msc.net>

Please take a moment to let us know how we have served you. Please [click here](#) or email customerservicefeedback@msc.us

From: F CACCHIOLI USNYC EXPORT DOCUMENT MGR

Sent: Thursday, March 26, 2015 11:07 AM

To: M PANTOSIN USNYC CLAIMS ASST MGR

Subject: exhibit A proof / no telex copy available, too old

Thanks

Francesco Cacchioli

New York Export Documentation Manager

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
for the real world

420 Fifth Avenue, New York, NY, 10018 USA

T: +1 212 827 1625 x 41625 F: +1 212 764 6597 D: +1 212 827 1657 W: www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

Visit our eCommerce website: <https://link.msc.net>

Please take a moment to let us know how we have served you. Please [click here](#) or email customerservicefeedback@msc.us

Exhibit “D”

Marcus A. Nussbaum

From: M PANTOSIN USNYC CLAIMS ASST MGR <mpantosin@msc.us>
Sent: Wednesday, April 15, 2015 5:05 PM
To: Marcus A. Nussbaum
Subject: RE: SUBPOENA DUCES TECUM/ exhibit A proof

Good day

Dear Marcus

The copy of the bl we have sent are copies that we took from our system. Please note I am checking for the other documentation. We will advise you by tomorrow.

Thank you

---Written strictly without prejudice and without admission of liability---

Best regards

Maria Jose Pantosin

Cargo Claims

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

for the real world

420 Fifth Avenue, 10018, New York, USA

T: +1 212 764 4800 ext: 33312 D: +1 212 827 1646 W: www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

Visit our eCommerce website: <https://link.msc.net>

Please take a moment to let us know how we have served you. Please [click here](#) or email customerservicefeedback@msc.us

From: Marcus A. Nussbaum [mailto:marcus.nussbaum@gmail.com]

Sent: Tuesday, April 14, 2015 9:01 PM

To: M PANTOSIN USNYC CLAIMS ASST MGR

Subject: RE: SUBPOENA DUCES TECUM/ exhibit A proof

Dear Maria,

I have a motion that is due on Monday and I need these documents to complete it. I can agree to give you until close of business on Thursday.

In the interim, can you please confirm that the bills of lading provided by you are copies of the original bills of lading maintained on file in your office. As I understand, these are not sea waybills, but they do not have numbers on the bottom of them. Please confirm.

***** Please note that my mailing address has changed *****